



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

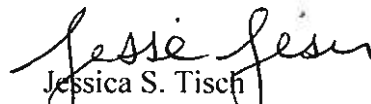
Re: Disciplinary Case No. 2023-28947 (PODS Case No. C-031561) regarding
Sergeant Ruben Santos, Tax No. 949626

Date: July 6, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Sergeant Santos wrongfully used physical force against an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Sergeant Santos will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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December 4, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Ruben Santos
(Tax Reg #949626, CCRB #202202687)

Commissioner Tisch:

A negotiated settlement for Training was agreed upon and signed by all parties on November 13, 2025. Assistant Deputy Commissioner – Anne Stone, endorsed the negotiated settlement on December 4, 2025.

On April 13, 2022, at approximately 3:00 p.m., Complainant went to the 52nd Precinct stationhouse to file a criminal complaint report of theft for charges made to her credit card without her consent. Sergeant (“Sgt.”) Ruben Santos informed Complainant that based on the information she had shared, and the paperwork submitted, her issue was a civil court matter and that a report could not be completed for her. Complainant requested to speak with another officer and a different sergeant. Sgt. Santos requested she leave the station or be arrested for trespassing. As Complainant approached the door to exit the station, Sgt. Santos grabbed her arm to make her leave the station faster. No summons was issued, or arrests made in connection with this incident.

Sergeant Santos’ body worn camera (“BWC”) footage is approximately 8 minutes and 15 seconds in duration and audio is activated at the 1:00 minute marker of the footage. Between 1:00-1:15, Sgt. Santos is seen leading Complainant to the complaint room and asking her about the issue that she desired to file a complaint about. Between 1:19- 4:14 Complainant answers the

questions Sgt. Santos asks about the transactions made. Between 4:26- 4:32, Complainant begins to raise her voice and asks Sgt. Santos to stop victim blaming her. At 6:37, Sgt. Santos tells Complainant that her situation is a civil matter and Complainant denies that it is as she requests to speak with a detective or another sergeant. Complainant talks over Sgt. Santos and does not allow him to explain why the issue was a civil matter. At 7:27, Complainant stands up from her seat and opens the door to the complaint room and goes to the lobby of the precinct in search of different officers to assist her. Sgt. Santos follows her out of the room and asks her to leave the stationhouse. Complainant asks to speak to a detective and Sgt. Santos repeats his request for her to leave the stationhouse and warns her that she could be arrested for trespassing if she failed to do so. Complainant then exits the stationhouse.

Complainant stated that Sgt. Santos began to yell at her to get out of the station house and threatened to arrest her for trespassing. When Sgt. Santos told Complainant that her complaint was a civil matter, she requested to speak with the detective. Sgt. Santos continued to yell at Complainant to get out as she walked towards the exit of the station. Complainant explained that as she attempted to open the door to exit the station, Sgt. Santos grabbed her arm, and she told him to get off her.

Sergeant Santos testified that he asked Complainant to leave the stationhouse after she was informed that a criminal complaint could not be filed as it was a civil matter, and she began to yell at him. Sgt. Santos asked Complainant more than twice to leave the station before he informed her, she could be arrested if she did not leave. Sgt. Santos denied ever making any physical contact with Complainant during their encounter and maintained his position after reviewing his BWC footage during the interview.

NYPD disciplinary guidelines indicate that for Non-deadly Force Against Another – resulting in No Injury, the mitigated penalty is the forfeiture of five (5) vacation days, the presumptive penalty is the forfeiture of ten (10) vacation days, and the aggravated penalty is termination.

The negotiated settlement deviates from NYPD disciplinary guidelines for the subject charge for the following reasons: Sergeant Santos has been a member of the service for 15 years. He has no prior Force, Abuse of Authority, Discourtesy, and Offensive Language discipline and has accepted responsibility in this matter. For these reasons, the CCRB deems it appropriate to deviate from the Matrix and recommends Training.

Respectfully submitted,

Andre D. Applewhite

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Chief Prosecutor

New York City Civilian Complaint Review Board

Cc: John D'Alessandro